
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER DENYING
DEFENDANT’S MOTION IN LIMINE
TO CLOSE PORTIONS OF THE
PRELIMINARY HEARING
TESTIMONY AND SEAL
PRELIMINARY HEARING
EXHIBITS**

Case No. 251403576
Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson seeks to close portions, if not all, of the preliminary hearing and to seal preliminary hearing exhibits. The motion has been fully briefed, and oral arguments were heard on May 19, 2026. At oral arguments, the parties agreed that neither the public nor the media should be permitted to inspect or copy exhibits presented at the preliminary hearing except as published in court as part of the hearing. With the issue of exhibits resolved, the court turns to closure of the preliminary hearing itself.

The public and the media enjoy a presumptive right to access court proceedings, including preliminary hearings. *See* 4-202.02(1); *see also Kearns-Trib. Corp., Publisher of Salt Lake Trib. v. Lewis*, 685 P.2d 515, 518-19 (Utah 1984). A party seeking to close a preliminary hearing must show that “adverse publicity traceable to the open hearing” poses a “realistic likelihood of prejudice to a fair trial” to overcome this presumption. *Id.* at 522-23. The party seeking closure must also show there are no less restrictive alternative means to ensure the integrity and impartiality of the jury. *Id.* Public access to judicial proceedings also serves an important role in maintaining confidence in the fairness and transparency of the judicial process. The court finds these showings have not been made here.

First, the motion does not identify with sufficient specificity the evidence that, if presented in a public proceeding, would create a realistic likelihood of prejudice to Defendant's right to a fair trial. Despite receiving notice of the State's witnesses and exhibits for the preliminary hearing, the motion raises generalized concerns regarding hearsay and expert reports without identifying particular evidence warranting closure. Furthermore, much of the evidence the State indicates it intends to offer during the preliminary hearing is already in the public arena and was identified in the information and probable cause statement. The possibility that evidence introduced at the preliminary hearing may later be ruled inadmissible at trial does not, standing alone, bar the public from the courtroom. *See Utah R. Crim. P. 7B(b)*. The court, however, acknowledges Defendant's pending Motion in Limine to preclude 1102 evidence and reserves ruling on that issue until the matter has been fully briefed and heard. (Dkt. 525).

Even assuming specific evidence had been identified that could present a risk to Defendant's constitutional right to a fair trial if publicly disclosed, the motion does not establish that no less restrictive alternatives remain available. Several methods remain available to protect Defendant's right to a fair trial, including enlarging the venire of potential jurors, utilizing detailed juror questionnaires, and conducting thorough voir dire—all methods routinely used to safeguard a defendant's constitutional rights. *See Kearns* at 523.

For these reasons, the court respectfully DENIES Defendant's motion. This is the order of the court.

Dated this 1st day of June, 2026.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

EMAIL: STACI VISSER STACI@BROWNBRADSHAW.COM

EMAIL: JEFFREY GRAY DCOURT@UTAHCOUNTY.GOV

EMAIL: CHAD GRUNANDER CHADGR@UTAHCOUNTY.GOV

EMAIL: RYAN MCBRIDE RYANM@UTAHCOUNTY.GOV

EMAIL: CHRISTOPHER BALLARD CBALLARD@UTAHCOUNTY.GOV

06/01/2026

/s/ SHIRLEY MOLINA

Date: _____

Signature